

-

File No.: EXP202317587

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On May 6, 2022, the Director of the Spanish Agency for Data Protection issued a resolution in the sanctioning procedure of file number EXP202102487, followed against A.A.A. (hereinafter, the defendant). In said resolution, in addition to imposing a fine, the following measures were required:

“SECOND: ORDER Ms. A.A.A., with NIF ***NIF.1 to, pursuant to Article 58.2.d) of the GDPR, within ten days, adopt the following measures:

- provide the images observed with the devices in question, indicating on a situational plan the parts corresponding to her private property.
- prove that she has proceeded to remove the cameras from the current locations, or to reorient them towards her private area.”

SECOND: After two unsuccessful attempts to deliver the postal notification of the resolution of the sanctioning procedure, in accordance with the provisions of Article 44 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP, hereinafter), the notification was made by means of an announcement published in the Official State Gazette dated June 3, 2022. In said resolution, the defendant was granted a period of 10 working days to adopt the imposed measures, as evidenced in the file.

THIRD: After the indicated period elapsed without any written communication received by this Agency regarding the measures implemented by the defendant, and having registered, on October 13, 2022, with registration number REGAGE22e00045580638, a written communication from the claimant indicating that the defendant has not complied with the requirements of this Agency, the defendant was again requested three times to prove, within ten working days, that she had adopted the appropriate corrective measures, in accordance with what was agreed in the aforementioned Resolution.

The first two requests, to which a copy of the resolution of the sanctioning procedure was attached, were returned to sender by the postal service on December 23, 2022, and May 25, 2023, due to Surplus (not collected at the office after leaving notices in the mailbox), according to the acknowledgments of receipt that are in the file.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

2/6

The third request was returned to sender due to incorrect address by the postal service on July 3, 2023, as evidenced in the acknowledgment of receipt in the file, despite the address having been previously verified with the State Agency for Tax Administration.

FOURTH: With outgoing registration dates of July 6 and November 7, 2023, and registration numbers REGAGE23s00045293991 and REGAGE23s00075234362, respectively, as a supplement to the previous notifications, two new communications of the requirement for compliance with the aforementioned Resolution were sent to the defendant by ordinary postal mail, to be deposited in her mailbox.

FIFTH: The defendant has not sent any response to this Agency that proves compliance with the imposed measures.

SIXTH: Against the aforementioned resolution, which requires the adoption of measures, no ordinary administrative appeal can be made due to the expiration of the established deadlines for it.

Furthermore, the interested party has not expressed her intention to file a contentious-administrative appeal, nor does this Agency have any record of such an appeal being filed or a request for precautionary suspension of the resolution.

SEVENTH: On December 26, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the defendant for the alleged infringement of Article 58.2 of the GDPR, classified under Article 83.6 of the GDPR.

EIGHTH: The agreement to initiate the present sanctioning procedure was notified to the defendant, in accordance with the rules established in the LPACAP, by means of an announcement published in the Official State Gazette dated February 8, 2024, after two delivery attempts in which the defendant was absent during delivery and did not collect the notification at the post office, as evidenced in the file.

In accordance with Article 42.1 of the LPACAP, the notification of the initiation agreement was also made available to the interested party electronically through the single enabled electronic address.

NINTH: The aforementioned initiation agreement was notified in accordance with the rules established in the LPACAP, and after the period granted for the submission of allegations had elapsed, it has been confirmed that no allegations have been received from the defendant.

Article 64.2.f) of the LPACAP - a provision of which the defendant was informed in the initiation agreement of the procedure - establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement regarding the attributed responsibility, it may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning file determined the facts that specified the accusation, the infringement of the GDPR attributed to the defendant, and the sanction that could be imposed. Therefore, considering that the defendant has not made any allegations to the initiation agreement of the file and in light of what is...

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

3/6

Established in Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case as a proposal for resolution.

In view of all that has been acted upon, the following facts are considered proven by the Spanish Agency for Data Protection in this procedure,

PROVEN FACTS

FIRST: The resolution of the sanctioning procedure and the requirements for compliance indicated in the first, second, third, and fourth antecedents were notified in accordance with the provisions of the LPACAP. Said resolution became firm and enforceable due to the expiration of the deadlines provided for the filing of appeals indicated therein.

SECOND: The respondent has not sent any response to this Agency that proves compliance with the imposed measures.

THIRD: The initiation agreement of the present sanctioning procedure was notified to the respondent, in accordance with the provisions of Article 44 of the LPACAP, by means of an announcement published in the Official State Gazette on February 8, 2024, after two delivery attempts in which the respondent was absent during delivery and the notification was not collected at the post office.

FOURTH: The respondent has not submitted any allegations to the initiation agreement of this sanctioning procedure.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law,

the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Obligation Breached

In light of the facts presented, it is considered that the respondent has breached the resolution of the Spanish Agency for Data Protection regarding the measures imposed on them.

Therefore, the facts described in the "Proven Facts" section are deemed to constitute an infringement, attributable to the respondent, for violation of Article 58.2.d) of the GDPR, which states the following:

"2. Each supervisory authority shall have all of the following corrective powers:

(...)

d) to order the controller or processor to bring processing operations into compliance with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame;"

III

Classification and Qualification of the Infringement

This infringement is classified under Article 83.6 of the GDPR, which stipulates the following:

"Failure to comply with the resolutions of the supervisory authority under Article 58, paragraph 2, shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to a maximum of 4% of the total annual global turnover of the preceding financial year, opting for the higher amount."

For the purposes of the statute of limitations for infringements, the infringement attributed prescribes after three years, in accordance with Article 72.1 of the LOPDGDD, which qualifies the following conduct as very serious:

"m) The failure to comply with the resolutions issued by the competent data protection authority in the exercise of the powers conferred by Article 58.2 of Regulation (EU) 2016/679."

IV

Imposed Sanction

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR. Consequently, the sanction to be imposed must be graduated according to the criteria established in Article 83.2 of the GDPR, and in accordance with the provisions of Article 76 of the LOPDGDD, regarding paragraph k) of the aforementioned Article 83.2 of the GDPR.

In light of the facts presented, it is considered appropriate to impose a sanction on the respondent for the violation of Article 58.2 of the GDPR classified under Article 83.6 of the GDPR. The sanction to be imposed is an administrative fine in the amount of 400.00 euros.

V

Adoption of Measures

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

5/6

This Agency agrees to impose on the responsible party the adoption of appropriate measures to adjust its actions to the regulations mentioned in this act, in accordance with the provisions established in the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame..."

It is warned that failure to comply with the order to adopt measures imposed by this agency in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Article 83.6, which may lead to the initiation of further sanctioning administrative proceedings.

Therefore, in accordance with the applicable legislation, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on A.A.A., with NIF ***NIF.1, for an infringement of Article 58.2 of the GDPR, classified in Article 83.6 of the GDPR, a fine of 400.00 euros (FOUR HUNDRED euros).

SECOND: TO ORDER A.A.A., with NIF ***NIF.1, that pursuant to Article 58.2.d) of the GDPR, within ten days from the date this resolution becomes final and enforceable, to prove compliance with the resolution of file number EXP202102487.

THIRD: TO NOTIFY this resolution to A.A.A..

FOURTH: This resolution will be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has expired without the interested party having exercised this right.

The sanctioned party is warned that they must fulfill the imposed sanction once this resolution is enforceable, in accordance with the provisions of Article 98.1.b) of the LPACAP, within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account No. IBAN: ES00-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A..

Otherwise, collection will proceed in the executive period.

Upon receiving the notification and once enforceable, if the date of enforceability falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

6/6

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal.

If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation proving the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, the provisional suspension will be considered terminated.

938-16012024

Mar España Martí
Director of the Spanish Agency for Data Protection
C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es